

and other poisons ultimately came back negative.

Police also did not begin questioning potential witnesses until the day the Globe called the homicide unit and the medical examiner's office about the case, which was three months after her body was found.

David Rodman, a spokesman for Suffolk County District Attorney Newman A. Flanagan, and Lt. Edward McNelley, chief of the police homicide unit, declined comment yesterday.

When told of the indictments, Phyllis Johnson, Blount's mother, said she was elated, but she tempered her remarks with her oft-repeated contention that authorities did not aggressively investigate her only child's death and botched the case because she was black.

Johnson compared the way authorities reacted to the death of another pregnant woman, Carol DiMaiti Stuart, just four months before her daughter was found dead. Johnson noted that every available detective was immediately put on the Stuart case, while officers did nothing in the wake of her daughter's death. "They just left me there to drip dry," Johnson said.

Media attention

She said she believed that no indictment would ever have been brought without the media attention that focused on the lack of a coordinated investigation by authorities.

"It would've taken a lot longer and probably nothing would've happened," said Johnson, 39, who has worked for New England Telephone Co. for several years.

"But something has got to be done about the Boston Police Department and the medical examiner's office," Johnson said. "They need to put more care into the way they do their jobs."

The investigation of Blount's death was stalled from the beginning because it was treated as a "sudden death," not a homicide, which a forensic specialist consulted by the Globe said was a major error.

Dr. Werner Spitz, an internationally recognized pathologist who reviewed the autopsy report, said it

Phyllis Johnson shows her emotions during a visit in March to St. Mary's Hospital where her 19-year-old daughter, Kasha Blount, was found dead in February 1990.

But Gerald Feigin, the Suffolk pathologist who conducted the autopsy, disputed Spitz's findings. Feigin, a former student of Spitz, said at that time that his former teacher's theory was "crap" and "a shot in the dark."

Feigin, who insists that he conducted every possible test to determine how Blount died, said previously that he wanted police to deliver a witness to help solve the mystery. Police, on the other hand, said they were waiting for Feigin to rule the case a homicide before launching a full-scale investigation.

Last June, Johnson's attorney, Michael Doolin, asked District Attorney Newman A. Flanagan to conduct an inquest into Blount's case, which he said had been "hampered by sporadic investigation by the Boston Police Department and a questionable autopsy performed by the Suffolk County Medical Examiner's office."

A month later Flanagan agreed, but the inquest was not held until late October, when two dozen witnesses testified over three days before Judge Gerald Alch in Dorchester District Court.

The Globe learned that during testimony before Alch, police officers said that James had given Blount's black leather coat to his new girlfriend. Blount was wearing the coat the day she was last seen alive, witnesses said. The coat was not found with her body, according to a police report.

The officers also testified that James gave three different versions of how he got possession of the coat. Initially, he said he purchased the coat from a store, then said he bought it "hot" off someone on the street and finally told officers that he had stopped by Blount's house on Feb. 15 and got it from her.

James invoked Fifth

When called to testify at the inquest, James, through his lawyer, Margaret A. Burnham, invoked his Fifth Amendment right against self-

But Johnson, noting that Blount's baby, a girl, would have been a year old by now, said she remains cautious about whether James will ever be convicted of first-degree murder. She said she expects James' lawyer to attempt to plea bargain the case to a lesser charge because of the holes in the case caused by the faulty investigation.

Blount was last seen alive at about 5:30 p.m. Feb. 16, 1990, when she left her job as a sales clerk at Cherry, Webb & Touraine in Dedham.

As she rushed out the door after grabbing her pay check, Blount told co-workers that she was going shop-

*Boston Glob
6/5/91,
article begins
on p. 1*

Don't forget

Da

Sport shirts

\$9.99



A00054

es it, has raised, she said.

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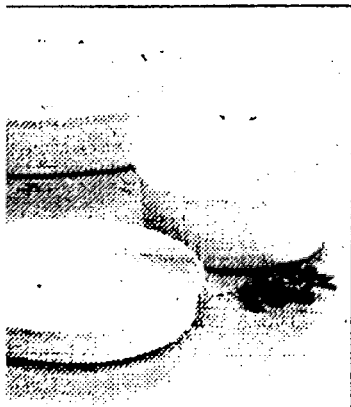


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Additional custom

in the home you live in and have

No purchase necessary. Limit one free gift
by AMRE, a SEARS-authorized contractor

ME ESTIMATE.

leged robbery when he came to her
home early yesterday.

and a firearm, said correction de-
partment officials.

Murder is unproven, so jury acquits man

Boston Globe, 5/6/92,
p. 24

By Doris Sue Wong
GLOBE STAFF

Unable to conclude that a homicide had occurred, a Suffolk Superior Court jury acquitted a Dorchester man yesterday of first-degree murder in the 1990 death of his pregnant ex-girlfriend.

The jury's verdict that Lennox David James was not guilty prompted the anguished mother of Kasha Blount, 19, of Dorchester, the dead woman, to rush from the courtroom, her face contorted in anguish.

Charles Ogletree, who with Margaret Burnham defended James, said it was clear that the inability of the medical examiner to determine the cause of Blount's death was a "linchpin" in the case.

"There was no credible evidence Kasha Blount died at the hands of David James," Ogletree said.

The jury deliberated about two hours before acquitting James at the end of a four-day trial. James had been free on bail.

Blount's body was found on a snowy and debris-laden dead-end street in St. Mary's Cemetery in Dorchester on the morning of Feb.

nant and her body apparently had been stripped of its coat, matching handbag and wallet, and jewelry.

The Globe reported four months after Blount's body was found that despite suspicions of foul play, her death remained a mystery because police and the medical examiner were waiting for each other to turn up more evidence.

Medical examiner Gerald Feigen was unable to determine a cause of death.

On the night before her body was found, as she left work between 5 and 5:30 p.m., Blount had told a co-

worker at a women's clothing store in Dedham that James was taking her to buy a baby carriage. Two of her coworkers testified that she was wearing a black leather coat and carrying a Liz Claiborne handbag with matching wallet when she left.

James' new girlfriend testified that James was at her house at 6 p.m. and presented her with some late Valentine Day presents, a black leather coat, matching handbag and wallet, later identified as belonging to Blount.

James gave three versions of how he had gotten the coat: that he bought it in a downtown store; that he bought it "hot" off the street; and that he took it from Blount a day earlier because she owed him money.

A juror who asked not to be identified said that the panel was unable to conclude that Blount had been killed at the hands of another, although the jury was troubled by James' different accounts of how he got Blount's leather coat and other belongings.

"He may have had something to do with it, but there was not enough to convict him," said the juror.

Feigen testified that Blount's death could be consistent either with suffocation or strangulation, or with natural causes such as heart failure due to stress on the cardiovascular system.

In addition, some eye fluid taken from Blount's body during the autopsy that could have helped determine the time of death was lost. Meanwhile, the medical examiner had allowed Blount's family to cremate her body.

Luke Tedeschi, a pathologist called by the defense, said the medical examiner conducted no tests on Blount's body for disease.

A00055

OFFICE OF CHIEF MEDICAL EXAMINER

03665

Report of Death

CASE NO. CME
(or Disposition)

DATE: 11-7-93

TIME: 8:10 A.M.

REPORTED BY: Peter

Tewksbury OFF

ext - 2301

UNDERTAKER:

CLAIMANT:

NAME: Gary Weems

A/R/S 33-B-M

M S W D ?

PLACE OF DEATH: 291 Summer St. Lowell, MASS.

DATE OF DEATH: 11-6-93

DATE OF ADMISSION: — ?

TIME OF ADMISSION: — ?

PRONOUNCED BY (DR.):

DECLARED BY (EMTs) EMT'S

RECEIVED BY: MEW

MEDICAL EXAMINER Dr. Feigin

TIME PRONOUNCED: 12:20 P.M.

D.O.A. ☒ YES ☐ NO

BODY BROUGHT BY:

Medonough F.H.

DATE:

11-6-93

TIME:

P.M. ?

TRAUMA: YES ☒ NO

DRUGS: YES/NO ?

ALCOHOL: YES NO ?

DECOMPOSED: YES ☒ NO

DESCRIBE HOW DEATH OCCURRED: (What happened just before death, who found victim, position & location of body, what was done in E.R., etc.?) IF THERE IS TRAUMA: What are the injuries, date of injury, time and place of injury and how did injury occur. Last seen alive by whom, (also date & time) and any complaints.

DATE & TIME OF INJURY:

PLACE OF INJURY:

Driver, Passenger, Pedestrian, Unknown

SEAT BELTS: YES/NO/UNKNOWN

- found dead at 291 Summer St. Lowell Mass in Rear. OF house.
- homeless person.

Cause of death:
Manner of death:

Est. Hgt:

Est. Wgt:

Rigor:

Body Temp:

Toxicology: YES

Autopsy: YES

11-8-93

Dr. Feigin

Tewksbury

IF J.D. (WHO CERTIFY DEATH?)

DOCTOR'S
NAME:TEL.
NO:NOTIFIED:
YES/NO

NEXT OF KIN:

RELATIONSHIP:

OFFICE OF THE CHIEF MEDICAL EXAMINER

UNIVERSITY OF MASSACHUSETTS MEDICAL CENTER

WORCESTER, MASSACHUSETTS 01605

PRELIMINARY AUTOPSY NOTES

HISTORY:	MEDICAL EXAMINER: [REDACTED]	
	POLICE PRESENT:	HT: 73" WT: 190
	HOSPITAL TREATMENT ☐ Laryn-Trach Tube ☐ Naso-Gast. Tube ☐ Oral Airway ☐ Thoracotomy ☐ Chest Tube ☐ Laparotomy ☒ Cut Down ☐ Defib. Marks	NEEDLE PUNCTURES ☐ R. Subclav. ☐ L. Subclav. ☐ Ant. Chest ☐ R. Ant. Elbow ☐ L. Ant. Elbow ☐ R. Hand ☐ Inguinal: L- ☐ Ankle: L-
EXTERNAL DESCRIPTION: Scalp Hair <i>dk</i> Length <i>3h</i> Forehead <i>br</i> Irises <i>br</i> Pupils <i>3</i> Conjunctivae <i>-</i> Arcus <i>-</i> Ears <i>-</i> Face <i>-</i> Upper Teeth <i>7 net</i> Lower Teeth <i>-</i> Lips <i>-</i> Mustache <i>+</i> Neck <i>-</i> Chest <i>-</i> Abdomen <i>-</i> Genitalia <i>ca</i> Arms <i>-</i> Wrist <i>6-10</i> Hands <i>-</i> Legs <i>for small scar R. leg</i> Ankles <i>-</i> Back <i>-</i> Rigor <i>-</i> Lividity <i>-</i>	CLOTHING:	WITNESSES: CHAIN OF CUSTODY:
	DATE OF AUTOPSY: _____	
	PRONOUNCED: _____ A.R.S. _____ DIAGNOSIS: <i>R- forearm cross tattoo</i> <i>6-10</i> <i>for small scar R. leg</i>	
	MANNER OF DEATH:	
NAME OF DECEASED:	CASE NUMBER: <i>933665</i>	

COMMONWEALTH OF MASSACHUSETTS
OFFICE OF THE CHIEF MEDICAL EXAMINER
PRELIMINARY AUTOPSY NOTES

PAGE 2

INTERNAL DESCRIPTION:	MICRO	ORGANS & FINDINGS
Subcutaneous Fat: <u>Y</u>		HEART (380) Coronaries: LAD <u>75%</u> LC <u>R</u>
Aromatic Odor:		Valves <u>✓</u> Myocardium <u>T</u> Aorta <u>✓</u>
Rib Fractures:		LUNGS (870) Pleura <u>dh</u> (820) P.A. <u>edma</u> Bronchi S.S.
Right:		LIVER (1610) Capsule Margins Size Color Consist. G.B. LN.
Left:		SPLEEN (230) Capsule <u>✓</u> Consist. S.S.
Spine Fracture:		KIDNEYS (30) Cortex <u>SM</u> Renal Art. Ureters <u>✓</u> Arch. Bladder <u>✓</u>
Pelvic Fracture:		ADRENALS
Adhesions:		STOMACH (Contents: <u>100</u> ml.) <u>dh</u>
Peritoneal:		Mucosa Esophagus Pancreas Bowel Appendix
R. Pleural:		UTERUS — Size — Endometrium — Ovaries — Tubes
L. Pleural:		NECK — Skin — Muscle — Lumen — Mucosa — Fracture — Spine — Oral Pharynx — Nasopharynx
Pericardial:		SCALP — Inj. — Hem. — Fracture — Hem.
		BRAIN (1200) L.M. Vessels S.S.
TOXICOLOGICAL		
Blood		
Urine		
Liver		
Blood Alcohol _____		
Urine Alcohol _____		
VITREOUS		
Glucose _____		
BUN _____		
Na _____		
K _____		
Cl _____		
CO ₂ _____		

DANGEL & FINE
ATTORNEYS-AT-LAW
31ST FLOOR
ONE INTERNATIONAL PLACE
BOSTON, MASSACHUSETTS 02110

EDWARD T. DANGEL, III
DAVID J. FINE
MICHAEL K. MATTCHEM
ALEXANDER T. BOK
JOSEPH A. HERNANDEZ

August 10, 1995

Ms. Rebecca Judge
7 Walter Terrace
Somerville, MA 02144

Ms. Denise Weems
[REDACTED]
Strafford, N.H. 03884

Ms. Justina Richardson
197 8th Street
Charlestown, MA 02129

Dear Ms. Judge, Ms. Weems and Ms. Richardson:

Please find enclosed a Contingent Fee Agreement regarding pursuit of the claims we discussed in my office on May 2, 1995. I am sending each of you two copies of the Agreement, which I have signed.

Please read each paragraph of the Agreement carefully. Please note, among other things, that, as stated in paragraph 7.c., I am advising each of you to consult your own, separate counsel before signing the Agreement.

If the Agreement is acceptable in its current form, please sign both copies of the Agreement in the two places indicated before a witness, who should also sign the Agreement; keep one of the signed copies for your records; and return the other signed copy to me. If the Agreement is not acceptable or if there is anything about the Agreement or the representation which you would like to discuss, [REDACTED]

Best regards.

Sincerely,

David J. Fine
David J. Fine

DJF/lmc
Enclosures

COMMONWEALTH OF MASSACHUSETTS

CONTINGENT FEE AGREEMENT
(To Be Executed in Duplicate)

Dated: August 10, 1995

The Clients Rebecca Judge, 7 Walter Terrace, Somerville, MA
[REDACTED]
Justina Richardson, 197 8th Street, Charlestown, MA 02129 retain
Attorney David J. Fine, Dangel & Fine, One International Place,
31st Floor, Boston, MA 02110, to perform the legal services
mentioned in paragraph (1) below. The attorney agrees to perform
them faithfully and with due diligence.

- (1) The claim, controversy, and other matters with
reference to which the services are to be performed
are:

claims against Lowell Medical Examiner and Lowell
Police for failing to notify Clients of the death of
Gary Weems, and for disposing of Gary Weems's body
without taking adequate steps to locate members of his
family to enable them to dispose of the body as they
saw fit.

- (2) The contingency upon which compensation is to be paid
is:

In the event of a recovery for the Clients, or of
the termination in favor of the Clients of the
controversy or other matters described in
paragraph (1) above, the Clients shall be liable
to pay reasonable compensation to the attorney in
accordance with the provisions of paragraph (4)
below.

- (3) The Clients are not to be liable to pay compensation
otherwise than from amounts collected for them by the
attorney.
- (4) Reasonable compensation on the foregoing contingency is
to be paid by the Clients to the attorney, but such
compensation (including that of any associated counsel)
is not to exceed the following maximum percentages of
the gross amount collected, whether by suit, settlement
or otherwise:

33 1/3 percent.

- (5) The Clients are in any event to be liable to the attorney for his reasonable expenses and disbursements.
- (6) The Client Rebecca Judge was the sister of the decedent Gary Weems. The Client Denise Weems was Mr. Weems's wife. The Client Justina Richardson was Mr. Weems's mother-in-law. All three Clients agree that any amounts recovered by any of them through pursuit of the claims identified in paragraph (1) above shall first be used to cover the cost of exhuming and positively identifying Gary Weems's body and reburying him in the Cambridge Cemetery with an appropriate headstone; and that any recovery remaining thereafter shall be held in trust for the benefit of Gary Weems's daughter, Justina Weems (born on November 23, 1984), with all trust income retained and reinvested until Justina Weems reaches the age of 21, at which time all principal and accumulated income shall be paid to her, free of trust, and the trust shall terminate.
- (7) Based on his understanding of the facts as presented to him by the three Clients, Attorney David J. Fine believes that the interests of the three Clients are in harmony, and that he can represent all three of them in pursuit of the claims identified in paragraph (1) above. However, by signing this Contingency Fee Agreement, each Client acknowledges: (a) that she understands there is a possibility that a conflict of interest may arise among the three Clients, in which event it may be advisable for each Client to have separate counsel; (b) that in the event of such a conflict of interest, attorney Fine's first loyalty would be to Rebecca Judge, the Client who first contacted him; and (c) that in view of the foregoing, attorney Fine has advised each of the three Clients to consult her own, separate counsel before signing this Contingency Fee Agreement and retaining Attorney Fine to represent the three Clients jointly in pursuit of the claims identified in paragraph (1) above.

This agreement and its performance are subject to Rule 3:05 of the Supreme Judicial Court of Massachusetts.

WE HAVE EACH READ THE ABOVE AGREEMENT BEFORE SIGNING IT.

Witnesses to signatures:

(To Client) _____

Client: Rebecca Judge

DANGEL & FINE
ATTORNEYS-AT-LAW
31ST FLOOR
ONE INTERNATIONAL PLACE
BOSTON, MASSACHUSETTS 02110

EDWARD T. DANGEL, III
DAVID J. FINE
MICHAEL K. MATTCHEN
ALEXANDER T. BOK
JOSEPH A. HERNANDEZ

September 22, 1995

Helen A. Brown, Esquire
2nd Floor

Dear Ms. Brown:

which you advised me that Denise Weems had consulted you regarding the proposed contingent fee agreement I had sent to her, Rebecca Judge, and Justina Richardson concerning the pursuit of claims against the Lowell Medical Examiner and Lowell Police for failing to notify them of the death of Gary Weems and for disposing of Mr. Weems' body in violation of their rights.

As I stated in our conversation, I believe it is a good thing that Denise Weems has consulted you regarding the proposed agreement, and about the claims in question, because it helps to ensure that whatever Denise Weems decides to do, her decision will represent her free choice, informed by the advice of her own, independent counsel.

Sincerely,

David J. Fine

David J. Fine

DJF:jr

DANGEL & FINE
ATTORNEYS-AT-LAW
31ST FLOOR
ONE INTERNATIONAL PLACE
BOSTON, MASSACHUSETTS 02110

EDWARD T. DANGEL, III
DAVID J. FINE
MICHAEL K. MATTCHEN
ALEXANDER T. BOK
JOSEPH A. HERNANDEZ

Certified Mail -- Return Receipt Requested

October 18, 1995

Ms. Denise Weems

Strafford, New Hampshire 03884

Dear Ms. Weems:

This is to confirm that on October 5, 1995 you telephoned me and stated:

1. that you had decided that you did not wish to be a plaintiff in the lawsuit you, Rebecca Judge and Justina Richardson discussed with me in my office on May 2, 1995 -- namely, a lawsuit against the Lowell Medical Examiner and Lowell Police for failing to notify any of Gary Weems's relatives of his death and for disposing of his body without taking adequate steps to locate members of his family to enable them to dispose of the body as they saw fit;

2. but that you had no objection to, and no problem with, Rebecca Judge proceeding with such a lawsuit on her own.

Please let me know immediately if you believe the foregoing is inaccurate in any way. If I do not hear from you in writing to the contrary by November 1, 1995, I believe I will be justified in inferring that you accept the foregoing as accurate.

Very truly yours,



David J. Fine

DJF/mef

xc: Helen A. Brown, Esq.
2nd Floor
Cambridge, MA 02141-1714

COMMONWEALTH OF MASSACHUSETTS

CONTINGENT FEE AGREEMENT
(To Be Executed in Duplicate)

Dated: August 10, 1995

The Clients Rebecca Judge, 7 Walter Terrace, Somerville, MA 02144, Denise Weems, [REDACTED] H. 03884, and Justina Richardson, 157 8th Street, Charlestown, MA 02129 retain Attorney David J. Fine, Dangel & Fine, One International Place, 31st Floor, Boston, MA 02110, to perform the legal services mentioned in paragraph (1) below. The attorney agrees to perform them faithfully and with due diligence.

- (1) The claim, controversy, and other matters with reference to which the services are to be performed are:

claims against Lowell Medical Examiner and Lowell Police for failing to notify Clients of the death of Gary Weems, and for disposing of Gary Weems's body without taking adequate steps to locate members of his family to enable them to dispose of the body as they saw fit.

- (2) The contingency upon which compensation is to be paid is:

In the event of a recovery for the Clients, or of the termination in favor of the Clients of the controversy or other matters described in paragraph (1) above, the Clients shall be liable to pay reasonable compensation to the attorney in accordance with the provisions of paragraph (4) below.

- (3) The Clients are not to be liable to pay compensation otherwise than from amounts collected for them by the attorney.
- (4) Reasonable compensation on the foregoing contingency is to be paid by the Clients to the attorney, but such compensation (including that of any associated counsel) is not to exceed the following maximum percentages of the gross amount collected, whether by suit, settlement or otherwise:

33 1/3 percent.

July 25, 97

UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

REBECCA JUDGE,

Plaintiff,

v.

THE CITY OF LOWELL; POLICE
OFFICERS JOHN J. SHEEHAN,
DANIEL R. BRADY, WILLIAM
M. TAYLOR, WILLIAM F. BUSBY,
LEWIS HUNTER, BARRY CHEVALIER,
DAVID TOUSIGNANT, GARRETT SHEEHAN,
JOHN DOE 1 AND JOHN DOE 2,
in their respective individual
capacities; and MEDICAL
EXAMINER GERALD FEIGIN, M.D.,
in his individual capacity,

Defendants.

Civil Action No. [REDACTED]

THIRD AMENDED COMPLAINT
(Plaintiff Demands Trial By Jury)

Parties

1. Plaintiff Rebecca Judge is an individual residing at 7 Walter Terrace, Somerville, Massachusetts.
2. Defendant City of Lowell is a municipality in Middlesex County, Massachusetts having a population of over 100,000.
3. Defendants John J. Sheehan, Daniel R. Brady, William M. Taylor, William F. Busby, Lewis Hunter, Barry Chevalier, David Toiusignant and Garrett Sheehan were at all times relevant to this Complaint employed as police officers by

the City of Lowell. Their actions alleged in this Complaint were taken under color of the laws of Massachusetts and the City of Lowell. They are sued in their individual capacities.

4. Defendants John Doe 1 and John Doe 2 were also police officers employed by the City of Lowell, whose names are currently unknown to plaintiff, but who, on information and belief, participated in the acts complained of herein. Their actions alleged in this Complaint were taken under color of the laws of Massachusetts and the City of Lowell. They are sued in their individual capacities.

5. Defendant Gerald Feigin, M.D. is a physician who worked at all times relevant to this Complaint as a Medical Examiner. His actions alleged in this Complaint were taken under color of the laws of Massachusetts and the City of Lowell. He is sued in his individual capacity.

Jurisdiction and Venue

6. This Court has jurisdiction over this action

[REDACTED]

[REDACTED]

Amendment to the United States Constitution, and insofar as this action seeks to redress the deprivation of plaintiff's civil rights. This Court has jurisdiction over plaintiff's claims arising under Massachusetts law pursuant to its pendent jurisdiction.

7. Venue is proper in this district pursuant to 28 U.S.C. §1391(b) insofar as the facts out of which plaintiff's